

25STCV35056 25STCV35056

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV35056 Hearing Date: September 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

23, 2026 TRIAL DATE: June 5, 2028

CASE: Shahram Pascal Abrar v. Tayfun Paul Kadioglu, et al.

CASE NO.: 25STCV35056

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO FORM

INTERROGATORIES,

SET ONE, FROM DEFENDANTS BELLEVUE OASIS LLC, FIT FOR A KING INC., AND PALOMA

PALM SPRINGS, LLC, AND FOR MONETARY SANCTIONS

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET

ONE, FROM DEFENDANTS BELLEVUE OASIS LLC, PALOMA PALM SPRINGS LLC, AND TAYFUN

KADIOGLU LLC

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE, FROM

DEFENDANTS BELLEVUE OASIS LLC, PALOMA

PALM

SPRINGS LLC, AND FIT FOR A KING, INC.

I. INTRODUCTION

On July 21, 2026, Plaintiff, Shahram

Pascal Abrar, filed three motions: (1) to compel Defendants, Bellevue Oasis LLC ("Bellevue"), Paloma Palm Springs LLC ("Paloma), and Fit for a King Inc. ("FFK") to provide further responses to Plaintiff's Form Interrogatories, Set One; (2) to compel Bellevue, Paloma and Tayfun Kadioglu LLC ("Tayfun") to provide further responses to Plaintiff's Requests for Production of Documents, Set One; (3) to compel Bellevue, Paloma and FFK to provide further responses to Plaintiff's Requests for Admission, Set One. Plaintiff requests sanctions against Defendants and their (then) counsel of record.

On August 26 and September 10, 2026, Defendants filed oppositions. On the same day, Defendants' former counsel also filed oppositions and joinder to Defendants' oppositions.

On September 1 and September 14, 2026, Plaintiff filed replies.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300, 2031.310, and 2033.290, parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the discovery requests are evasive or incomplete or where an objection is without merit or too general.    

The service of supplemental responses during the pendency of a motion to compel further does not moot the motion. (See County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 ["Moreover, to adopt the County's interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation."].)  

Monetary Sanctions. . .

. . .

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.) . . .

. . .

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. . . .

. . .

Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.300(d); 2031.310(h); 2033.290(d).) . . .

III. DISCUSSION

A. Judicial Notice

Defendants unopposed request for judicial notice is GRANTED.

B.

Form Interrogatories (FROG) and Requests for Production of Documents (RFP)

Defendants initially served objection-only responses and, during the pendency of this motion, served supplemental verified responses. Contrary to Defendants' position, the supplemental responses do not divest the court of its jurisdiction to rule upon Defendants' initial responses. (See County of San Benito v. Superior Court, supra, 96 Cal.App.5th at p. 256.) However, based on Plaintiff's reply, many of the issues may now be moot. The court will therefore order the parties to meet and confer regarding Defendants' supplemental verified responses. Any remaining disputes are to be clearly detailed in a separate statement. The court will rule on Plaintiff's sanctions request pending further hearing on the motions to compel further responses to the FROGs and RFPs.

C.

Requests for Admission (RFA)

The only remaining RFA at issue is

Defendants' supplemental responses to RFA No. 31. (See Reply ISO MTCF to RFAs, p. 2.) Defendants provided the same responses to RFA

No. 31. The court has reviewed the supplemental responses. It is evasive and does not admit, deny, or state an inability. (See Code Civ. Proc., § 2033.220.)

Accordingly, the motion to compel further responses to RFA No. 31 is GRANTED. The motion is MOOT as to RFA Nos. 1-30, 32-35.

The court also finds sanctions against Defendants only are warranted. The court finds that former counsel did not engage in or counsel discovery abuse. Accordingly, sanctions are imposed against Defendants in connection to the RFAs in the total sum of \$2,310.

IV. DISPOSITIONS

1. The hearing for the motions to compel further responses to FROGs and RFPs are CONTINUED to October 23, 2026. The parties are to meet and confer regarding Defendants' supplemental responses. Any remaining disputes are to be detailed in

a separate statement to be filed no later than 7 court days before the hearing.

2. The motion to

compel further responses to the RFAs is GRANTED as to RFA No. 31. Defendants are ordered to provide further responses to RFA No. 31 within 10 days of this order and to pay sanctions in the sum of \$2,310 within 30 days of this order.

Plaintiff to

give notice, unless waived.

Dated: September 23,
2026

Brock T. Hammond

Judge of the Superior Court